

RESOLUTION OF FILE OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 24, 2023, a complaint was filed with registration number REGAGE23e00019431329 before the Spanish Agency for Data Protection against SPORTIUM APUESTAS DEPORTIVAS, S.A.

The reasons for the complaint are as follows:

The complainant states that: "The video surveillance camera installed on the façade of the betting house does not focus on its façade and door but rather on the sidewalk and the crosswalk next to it, in addition to being in front of a children's park (which, due to the orientation of the camera, may be recording) and next to a school, whose playground is no more than 50 meters from the establishment. An area frequented by many minors who are recorded without even approaching the betting room." It provides a photograph "taken from the crosswalk" in which the placement of a video surveillance camera on the front façade next to the door of the establishment named SPORTIUM APUESTAS DEPORTIVAS, S.A. can be seen, in which the field of vision of the camera is not apparent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the accused party, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), was acknowledged on April 27, 2023, as recorded in the acknowledgment of receipt in the file.

THIRD: On May 3, 2024, a response letter from SPORTIUM APUESTAS DEPORTIVAS, S.A. was received by this Agency, in which it provides the deed of incorporation of the company and claims that there is an error in the identification of the accused company, stating that:

"(...) This party feels obliged to inform the Body to which I respectfully address that SPORTIUM APUESTAS DEPORTIVAS is not the company that operates the establishment 'SALÓN DE JUEGOS TRÉBOL ZAMORA' located at ***ADDRESS.1, but only has a SPORTIUM betting corner in the aforementioned establishment, and therefore, this party is not the company responsible for the processing of the images captured by the video surveillance systems installed in that establishment, but rather the company that operates the latter.

As a consequence of all the above, this party finds itself unable to comply with the request for information and documentation received on April 27, 2023, as it is not the company that operates the establishment 'SALÓN DE JUEGOS TRÉBOL ZAMORA' located at ***ADDRESS.1, but ELECTRÓNICOS LEON, S.L., holder of CIF number B-24.066.094."

FOURTH: On June 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD.

As a result, on November 15, 2023, the acting inspector issued a Preliminary Action Report stating that the following investigative actions have been carried out:

1. Request for information and documentation made to ELECTRÓNICOS LEON, S.L.

On October 27, 2023, the inspector formulated a request to the entity ELECTRÓNICOS LEÓN, S.L., forwarding the complaint filed for the purpose of stating whether it is responsible for the installation of the aforementioned video surveillance system and providing the following documentation related to compliance with the obligations established in video surveillance matters:

- Indicate the NIF number and the contact email of the person responsible for the video surveillance

system.

- Indicate the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used to view the images, in which the areas within the field of vision of the cameras can be seen. The cameras must not, under any circumstances, record or allow the viewing of neighboring properties that are not owned by them, nor the interior of homes or any other private or reserved space, nor the public road, except for the portion of the public road minimally necessary for the intended security purpose.
- Provide photographs of the sign or signs that warn of the existence of a video surveillance area, in which the information contained in the sign is clearly visible, as well as its location. It must be evidenced, through photographs, that the...

3/10

Monitors displaying images captured by the cameras are only accessible to authorized personnel (they must not be visible to customers and unauthorized staff of your establishment). In these photographs, the location of the monitors must be clearly visible. You must specify the measures taken to ensure that only authorized personnel have access to the images and recordings.

- In the event that you have contracted a security company for the installation, maintenance, and/or management of the video surveillance system, you must provide a copy of the contract signed with the security company and, when possible, a technical report of the video surveillance system prepared by that company.

If the surveillance system records images, indicate the retention period for these.

- If the cameras are fake, provide the invoice, purchase receipt, or any other document that serves to prove that they are fake, or, alternatively, provide a responsible declaration stating, under your responsibility, that the cameras are fake.
- If the cameras are not operational or have been removed and therefore do not allow for the viewing or recording of images, you may provide a responsible declaration.
- Any other information that you consider relevant and that may serve to assess the adequacy of the video surveillance system to data protection regulations.

2. Response to the request from ELECTRONICOS LEON, S.L.

On 10/11/2023, a response was received from the party being claimed against, acknowledging responsibility for the video surveillance system referred to in the claim, stating the following:

"This party states that the video surveillance cameras installed in this location DO NOT violate data protection regulations, and this is in accordance with the following INFORMATION:

- Responsible for the installation: ELECTRÓNICOS LEÓN SL, with CIF B24066094, and contact phone number at ***PHONE.1.
- For the installation and maintenance of the CCTV system, the company PROTEXT SEGURIDAD SL, a certified security company, has been contracted.
- The video surveillance system consists of eighteen cameras that do not capture sound and are not motorized. All have night vision. Seventeen cameras of the type SAFIRE SF-IPT855ZW4E are located inside the gaming room that the responsible party has at the above-mentioned location. One camera of the type SAFIRE SF-IPCV798ZAWH6 is located above the entrance door to the gaming room. This camera has masking, thus limiting the capture of images from public roads.

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4/10

The cameras are associated with two recorders SF-NVR8216A16P4K that record on a 4TB hard disk for cyclical periods that never exceed fourteen days for the first recorder and thirty days for the second recorder, so that old images are destroyed by overwriting. The first recorder is associated with sixteen cameras, while the second recorder is associated with two cameras.

- At no time are images of public roads captured. The cameras have digital masking to prevent the

capture of images from public, intimate, and/or foreign spaces.

Document number one includes photographs of what the cameras view as well as a photograph of the device on which the images are displayed. As can be seen, the capture of images by the cameras is limited to the interior of the premises and the façade of the establishment. Additionally, signs indicating a monitored area have been placed in the premises, and a Risk Analysis and Treatment Activity Register has been prepared. At the request of the AEPD, this party will make this documentation available. Document number two includes photographs of the signs located in the installation.

- The text on the sign is as follows:

“Electrónicos León SL, as the data controller, informs you that video surveillance cameras have been installed to ensure the safety of the goods and persons inside its establishment. Your image, as personal data, will be retained for a maximum period of one month and will not be transferred to anyone, nor will there be any international data transfers. The legitimacy of the processing is Law 5/2014 on Private Security, in accordance with Article 22 of the Personal Data Protection and Digital Rights Guarantee Act. You may file a complaint with the control authority (AGPD; C/ Jorge Juan, 6 - 28001 Madrid), as well as exercise your rights of access, deletion, and limitation by contacting the data controller at the following address: C/ ***ADDRESS.2. The processing has the corresponding favorable risk analysis, as required by Article 25 of the GDPR.”

- Access to the images can be made through the app, which the responsible party accesses using a username and password. Additionally, there is a monitor associated with the recorder, which is located in the office where the recorder is kept and is locked, and can only be accessed, as stated, by entering the username and password.

- The retention period for the images is fourteen days. The images are automatically overwritten.”

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5/10

I

Competence and Procedure

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

III

Obligations Regarding Video Surveillance

The images generated by a system of cameras or video cameras are personal data, as the physical image of a person is considered personal data worthy of protection, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, thus their processing falls within the scope of application of this Regulation.

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD states that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR,

which stipulates that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.” Regarding the application of this principle, the following should be noted:

- This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

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6/10

- In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

- The application of the principle of data minimization in video surveillance means that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization. In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

- That is to say, cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

- Under no circumstances will the use of surveillance practices beyond the area subject to the installation be permitted, and in particular, they must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

- The installed cameras may not capture images of the private space of third parties and/or public space without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

- Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

- Images may not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

- Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

The processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

- 1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved.

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7/10

achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

- 3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information of the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, assess them, and, where applicable, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of natural persons, it must notify the AEPD within a maximum period of 72 hours. A security breach is understood to be the destruction, loss, or alteration.

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8/10

accidental or unlawful processing of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to the following documents of interest for the proper compliance with this regulation:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and Tools").

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and Tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

IV

Analysis of the present case

In the present case, the complaint accuses the responsible party for the installation of the video surveillance system of capturing excessive images of the public thoroughfare, which implies analyzing whether, in light of the field of vision of the cameras, it can be observed that the responsible party may have violated the Principle of Proportionality and Data Minimization established in the aforementioned Article 5.1.c) of the GDPR.

Specifically, the complaint provides a single photograph of the facade of the establishment in which a single front camera appears, and states the following: "The video surveillance camera installed on the

facade of the betting house does not focus on its facade and door but rather on the sidewalk and the crosswalk next to it, in addition to being in front of a children's park (which, due to the orientation of the camera, may be recording) and next to a school, whose playground is no more than 50 meters from the establishment. An area through which many minors pass who are recorded without even approaching the betting room.”

In order to verify these statements, the inspector requested the responsible party for the video surveillance system, ELECTRÓNICOS LEÓN, S.L, to demonstrate that they had complied with all the requirements demanded by the aforementioned regulation, among which was the obligation to comply with the mentioned Principle of Minimization, providing documentation that certifies the number, position, and field of vision of each of the cameras from which they...

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9/10

comprises the system, to verify whether there could be excessive capture of images from the neighboring property, common areas, or public thoroughfare.

Upon examining the documentation provided by the respondent, it is observed that the installed video surveillance system has not captured unnecessary or excessive images of the public thoroughfare, nor of private spaces, for the following reasons:

- On one hand, it states that only one of the 18 cameras that make up the system is located outside the establishment, and it provides a photograph that confirms this fact, which coincides with the photographs submitted by the claimant, where only one camera is visible on the building's facade.
- Secondly, it states that this is a SAFIRE SF-IPCV798ZAWH6 type camera, which is located above the entrance door to the game room, and that this camera is equipped with masking, thereby limiting the capture of images from the public thoroughfare. This has been evidenced by the submission of photographs of the camera's field of view, in which it is clearly observed that there are indeed 18 cameras, that only one of them focuses on the exterior of the game room, which is Camera 1, and that a privacy mask is placed on it to prevent unnecessary portions of the public thoroughfare from being captured that are not strictly necessary to ensure the security of its facilities. In light of the photograph of the field of view of Camera 1, it is observed that only the portion of the image where the fence separating the private space of the establishment from the public space is visible, with the rest appearing in black due to the effect of the privacy mask.

To avoid the capture of excessive images, the Guide on the use of video surveillance cameras approved by this Agency, to which reference has been made previously regarding common areas of the residence, states that:

“For compliance with these measures, it is especially advisable/useful to place so-called ‘privacy masks’ on the installed cameras, which allow for the anonymization or concealment of that part of the image that the camera focuses on whose recording is not permitted, thus ensuring that there will be no excessive capture while simultaneously fulfilling the purpose of preserving the security sought by the person responsible for the video surveillance system.”

Therefore, it is considered that the video surveillance system of the respondent does not violate the principle set forth in Article 5.1.c) of the GDPR, since the photograph provided by the respondent proves that the only camera recording the exterior of the establishment has been equipped with adequate security measures that prevent the excessive capture of images of private spaces, adjoining common areas, and the public thoroughfare, as a privacy mask has been placed that prevents the identification of the faces of passersby on the public thoroughfare, as well as the surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

V

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data

Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing of the images captured by the video surveillance system of the respondent, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to ELECTRÓNICOS LEÓN, S.L. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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